

(47)

Tentative Ruling

Re: ***Joyson Therampilly v. Alisa Gevorkyan***
Superior Court Case No. 25CECG05097

Hearing Date: June 18, 2026 (Dept. 403)

Motion: Petition to Confirm Arbitration Award

Tentative Ruling:

To grant the petition to confirm the Arbitration Award.

Explanation:

Petitioner, Joyson Therampilly John, individually and dba Green Valley Real Estate & Mortgage, petitions the Court to confirm the arbitration award against respondents Alisa Gevorkyan, Bisharah S. Rizvi, and Irtiza "Ian" Naqvi.

Code of Civil Procedure, section 1285 states that "[a]ny party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award."

Upon service and filing of a petition to confirm arbitration award, the court shall confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (Code Civ. Proc., §1286.) Where the petition is served but no response is served and filed, the allegations in the petition are deemed admitted. (Code Civ. Proc., §1290; *Taheri Law Group, A.P.C. v. Sorokurs* (2009) 176 Cal.App.4th 956, 962.) The court shall confirm the award as made unless it is corrected or vacated. (Code Civ. Proc., §1286.) If the award is confirmed, judgment is entered in conformity with it. (Code Civ. Proc., §1287.4.)

Code of Civil Procedure 1285.4 states that a petition under this chapter shall:

- (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.
- (b) Set forth the names of the arbitrators.
- (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

Petitioner has met all these requirements. Petitioner provided a copy of the arbitration agreement, has set forth the name of the arbitrator, and provided a copy of the arbitration award, attached to the petition.

Code of Civil Procedure section 1283.6 provides that: "The neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by

registered or certified mail or as provided in the agreement.” In addition, a party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less than 10 days, after the award is served. (Code Civ. Proc. §§ 1288, 1288.4.)

The petition indicates that the arbitration panel served a signed copy of the award onto each party, and the petition is timely.

Code of Civil Procedure section 1290.4, the statute governing proper service of this Petition states, in pertinent part:

(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

The petition was served compliance with Code of Civil Procedure section 1290.4.

Having met the requirements of Code of Civil Procedure sections 1285 and 1285.4, the petition is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** June 17, 2026.
(Judge's initials) (Date)